

In T.655/13 the board held that the examining division would need to provide the translation of at least the referenced larger section of document D1 on which it based its reasoning, or identify the relevant passage as clearly as possible, to enable the appellants (and if necessary the board) to understand and verify whether the examining division had taken their arguments into account, thereby respecting their right to be heard.

In T.1385/16 there was no discussion in the decision under appeal of the appellant's submissions made in letters of 12 December 2012 and 17 August 2012 regarding application of the Guidelines H-V, 3.2.1 and H-V, 3.1 at that time, which it regarded as being relevant to the question of assessing whether the amendment constituted an unallowable intermediate generalisation. Indeed the board held that there did not appear to have been any adequate discussion of these submissions at any point during the examination procedure. Since the examining division had failed to address fundamental submissions made by the appellant in the decision under appeal, the board found that a substantial procedural violation had occurred.

In T.1230/15 the board found that the appellant's (opponent's) apparent understanding that there existed an absolute right to present all possible inventive-step attacks orally before the opposition division – and that anything else constituted a violation of the right to be heard – was in fundamental contradiction to the problem and solution approach as applied by the departments of the EPO for assessing inventive step. That the discussion to establish the (single) closest prior art had not taken place with the necessary clarity of purpose, or may have even been omitted, was, on its own, not sufficient for the board to decide that a violation of the right to be heard had occurred, let alone a substantial one.

#### 2.4.3 No obligation to address each and every argument

Provided that the reasons given enable the parties concerned to understand whether the decision was justified or not, the deciding organ is under no obligation to address each and every argument presented by the party concerned (see chapter V.B.4.3.10 "Consideration of the parties' arguments in the written decision"; see also T.1898/11 and T.1557/07 quoted in T.1969/07, T.698/10, T.1199/10 and T.1961/13). Moreover, a party has no absolute right to be heard separately on each and every one of its auxiliary requests (see also chapter V.B.4.3.12 "No right to be heard separately on all requests").

#### 2.4.4 Failure to consider submissions made after a communication

In T.1709/06 it was held that, not only must an opportunity to present comments be given, but these comments must actually be taken into account (see also in this chapter III.B.2.4.2). The decision "on the state of the file" expressly stated that the applicant had filed no submissions after the final communication, which was incorrect. Because the examining division had therefore ignored potentially significant arguments presented in a reply following a communication containing a new objection, the applicant had been denied its right to comment on all the grounds for refusing the application.

The board in T.1997/08 held that for an examining division not to violate an applicant's right to be heard, its decision had to actually address the arguments put forward by the

applicant in its reply to the communication. It may be assumed that the right to be heard has been contravened if the reasons given for the examining division's decision merely repeat the reasons given for the communication issued before the said reply (see also **T.116/12**).

In **T.921/94** the board held that the appellant's bona fide submissions and the technical information provided in reply to a communication substantially changed the points at issue, and that the examining division had an obligation under **Art. 96(2) EPC 1973** (**Art. 94(3) EPC**) and **113(1) EPC** to inform the appellant of the objections arising in the new situation and to invite it to file further observations before refusing the application. A decision which only comprises a mere formal acknowledgement of the applicant's submissions, without dealing with them in substance, contravenes the general principle of good faith and fair proceedings that reasoned decisions contain at least some reasoning on the crucial points of dispute in order to give the party concerned a fair idea of why his submissions were not considered convincing (see also **T.1154/04**).

In **T.296/96** the applicant had submitted unconvincing arguments in his reply to the first and only communication. The examining division refused the application on the basis of the objections mentioned in the first communication, and did not issue a second one. Since, however, the main arguments for refusing the application were a mere repetition of those mentioned in the first communication, the contested decision was based on grounds on which the applicant had had an opportunity to present his comments (see also **T.2316/10**).

In **T.452/16** the board found that just indicating that the applicant's arguments filed in response to a communication were unconvincing, without addressing them in detail, might be sufficient in a communication preparing oral proceedings. However, the mere reference to such a communication could not suitably replace the grounds for a decision to refuse the application, because the reasons why the examining division upheld its opinion were obscure.

#### 2.4.5 Failure to consider evidence

According to **T.1536/08** it is well-established in the jurisprudence of the boards of appeal (see e.g. **J.7/82**, **T.94/84** and **T.135/96**) that the right to be heard enshrined in **Art. 113(1) EPC** also guarantees the right to have relevant grounds that could potentially influence the outcome taken into account in the written decision. A decision rejecting the opposition must therefore take into account the ground(s) for opposition raised as well as facts and evidence put forward in support of these grounds, including the cited prior art documents. Failure to consider evidence will normally constitute a substantial procedural violation of this fundamental right as it deprives the party of the right to have its case fully heard (see also **T.1098/07** below). In the case at issue, the opposition division had completely ignored the unambiguous offer by the opponent in the notice of opposition to provide the original printed versions of crucial prior art documents. The failure to consider this offer constituted a violation of the right to be heard.

In T 1110/03 (OJ 2005, 302) the board held that enshrined in Art. 117(1) EPC and Art. 113(1) EPC is a basic procedural right generally recognised in the contracting states, i.e. the right to give evidence in appropriate form, specifically by the production of documents (Art. 117(1)(c) EPC), and the right to have that evidence heard. See also T 2294/12 in which one of the appellants had submitted two sets of comparative tests during the written phase; with reference to the right to give evidence in an appropriate form as set out in T 1110/03, the board held that the examining division had denied the appellants their right to be heard because the decision under appeal gave no reason why the division had found the first set irrelevant and did not even mention the second.

In T 1098/07 the board stated that failure to consider evidence will normally constitute a substantial procedural violation in that it deprives a party of basic rights enshrined in Art. 117(1) and Art. 113(1) EPC. In the board's opinion, certain factors may nevertheless mitigate the severity of the violation. Thus, whether or not a failure of the decision to expressly mention material offered by a party in support of its case constitutes a substantial procedural violation will depend on the (prima facie) significance and evidential value of such material. The questions to be asked are: what facts is it intended to prove, how relevant is it to these facts and how likely is it that it will prove them? In the case at issue, the failure to consider the evidence was a pardonable error that had not deprived the appellant of any fundamental rights.

In T 21/09 the board held that the opposition division had either (i) disregarded the experimental evidence submitted by the appellant as late-filed, or (ii) considered the evidence, but failed to give proper reasons why it did not support the alleged technical effects. In the first case, the patent proprietor had not been heard on the admission of the evidence, and, more importantly, the decision was absolutely silent about it. In the second case, the decision under appeal suffered from a severe deficiency in the reasons given by the opposition division for the adverse findings on inventive step. In either case, the decision could not be regarded as being in conformity with R. 111(2) EPC.

In T 2415/09 the appellant (patent proprietor) argued that new documents and experiments submitted by the respondent had only been transmitted to the appellant six weeks before the oral proceedings before the opposition division. The board said it could not comment on the exact period needed to conduct comparative experiments. Even if the periods specified in R. 132(2) EPC did not apply in the case in point (R. 116(1) EPC), they showed that a party could not be required to conduct comparative experiments in a period as short as six weeks. The board concluded that the opposition division had failed to respect the appellant's right to be heard.

In T 94/84 (OJ 1986, 337) the board held that the right to be heard guarantees that grounds put forward are taken into consideration, and was contravened because a translation, subsequently filed in an official language, of a Japanese document cited in due time was disallowed.

In T 2541/11 the appellant (opponent) submitted that the non-admission of a document without a full discussion as to its relevance violated its right to be heard. The board stated that a right to present all arguments as if the document had been admitted, instead of

arguments as to why it should be admitted, amounted to a de facto admittance of the document, implying, contrary to Art. 114(2) EPC, that the board had no discretion to disregard a late-filed document. According to the board, the right to respond is not absolute but must be balanced inter alia against the need for procedural economy and due diligence that underpins Art. 114(2) EPC, which affords the board discretionary power to disregard evidence not submitted in due time.

See also chapter III.G.3.3. "Right to be heard".

#### 2.4.6 Mere reference to jurisprudence

In T 1205/12 the board stated that according to established jurisprudence of the boards of appeal Art. 113(1) EPC is contravened where facts and arguments, which from the appellant's submissions are clearly central to his case are completely disregarded in the decision. The board held that the applicant's arguments had not been dealt with in the impugned decision and stated that the mere reference to jurisprudence of the boards of appeal does not, by itself, constitute or replace an argument in a first instance decision. If a deciding body, in a decision, wants to rely on an argument put forward in a decision of the boards it is insufficient merely to refer to it or to recite it. The deciding body must also make clear that it adopts the argument and explain why, in what respect and to what extent this argument applies to the case at hand (see also T 1206/12, T 1592/13).

### 2.5. The right to be heard and the timing of decisions

#### 2.5.1 Decision could not be expected

In T 849/03 the board held that a decision should not catch the parties unawares. In the examination procedure the right to be heard is therefore violated not only in the event of failure to inform the applicant beforehand of the reasons forming the basis of a rejection but also if, at the time the decision is issued, the applicant had no reason to expect such a decision (see also T 1022/98 and chapter V.B.4.3.9 "Timing of a decision allegedly surprising").

In T 611/01 the board decided that a substantial procedural violation was occasioned by the examining division holding out to the appellants the prospect of a further opportunity to file arguments before any decision would be issued, and then issuing the decision without providing for that opportunity (regarding a false impression raised concerning amended claims, see also T 309/94).

In T 966/02 the board stated that it had been clear that the appellant (patent proprietor) had regarded both filed notices of opposition as inadmissible and had thus felt that there was no sense in commenting on the facts until the situation had been clarified. The appellant could not have foreseen that the opposition division would give a final decision without first clarifying the procedural situation, and it came as a complete surprise to it that it did so.

In T 922/02 (ex parte) the board stated that the provisions of Art. 113(1) EPC were only complied with in a case where the decision was taken after remittal for further prosecution, if the notification and invitation was made after the remittal, typically by announcing the resumption of the proceedings, setting out the objections, if any, and asking the appellant whether or not he wished, within a fixed period of time, to present his comments or modify his request(s). Otherwise any final decision would come as a surprise to the appellant, which was contrary to the principle of good faith and fair hearing established by Art. 113(1) EPC. The board followed in this respect the case law developed in T 892/92 (OJ 1994, 664) and T 120/96 for opposition proceedings, which was equally applicable to examination proceedings, because the right to be heard was an essential procedural principle governing both procedures.

In T 281/03 of 17 May 2006 the issue of inventive step was not discussed at the oral proceedings, and the opposition division, after deliberating and announcing its decision on novelty, immediately announced the decision to reject the oppositions. The board held that, in order to guarantee the right to be heard, there should have been an explicit step, recorded in the minutes, giving the opponent the opportunity to comment on inventive step before the final deliberation, or alternatively an opportunity after the deliberation to comment on the opposition division's conclusion.

In T 451/06 the board distinguished the situation at hand from that in decision T 281/03. In the case underlying T 281/03, the opposition division had failed to give the opponent an opportunity to comment on lack of inventive step, thereby depriving the opponent of any possibility of substantiating a ground of opposition (see G 1/95). By contrast, in the case in hand, the opponent had been given the opportunity to substantiate the ground of opposition of lack of inventive step. The chairman's invitation to present all the objections in respect of inventive step had in effect been an invitation to the opponent to present both its "main and auxiliary requests". After the initial statement of the chairman that the issue to be discussed was lack of inventive step, the substantiation of the ground of opposition was exclusively the responsibility of the opponent.

#### 2.5.2 Issuing of decision before expiry of time limit to comment

In T 663/99 the board decided that the patent proprietor's right to be heard was violated if the time limit fixed under R. 57(1) EPC 1973 (R. 79(1) EPC) for presenting comments on the opposition had not expired by the date of handing over a revocation decision to the EPO's internal postal service (see also T 804/94).

In T 1081/02 the board of appeal decided that the principle of the right to be heard had been violated, since the opposition division, after inviting the patent proprietor to file the documents considered necessary to maintain the patent within two months, did not wait until this time limit had expired but issued an interlocutory decision prior to its expiry.

In T 685/98 (OJ 1999, 346), the board held that the phrase "fails to reply in due time to any invitation under ... paragraph 2" in Art. 96(3) EPC 1973 (Art. 94(4) EPC) had to be construed in the light of the purpose of the invitation pursuant to Art. 96(2) EPC 1973 (Art. 94(3) EPC) and R. 51(2) EPC 1973 (R. 71(1) EPC), which was to afford the applicant